

		The Agreement provides it “is a condition of employment.” ROA 42 Ex. 2 ¶ 1. The evidence thus weighs in favor of finding the Agreement is a contract of adhesion and is thus procedurally unconscionable. Sanchez v. Carmax Auto Superstores California, LLC (2014) 224 Cal.App.4th 398. However, the fact that an agreement is adhesive is not, by itself, sufficient to render it unenforceable. Malone v. Superior Court (2014) 226 Cal.App.4th 1551, 1561; Samaniego v. Empire Today, LLC (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause). Irrespective of any degree of procedural unconscionability, however, the Agreement is fully enforceable on its terms because the court finds it is not substantively unconscionable in any respect. Accordingly, plaintiff is ordered to arbitrate his individual claims against defendant. It is well settled that class action waivers are enforceable, as here, in arbitration agreements governed by the FAA. Epic Systems Corp. v. Lewis (2018) 138 S. Ct. 1612, 1616; Iskanian v. CLS Transportation Los Angeles, LLC (2014) 59 Cal. 4th 348, 364. Under the FAA, when an arbitration agreement does not authorize class arbitration of disputes, case law provides for the dismissal without prejudice of the class claims. Epic Systems Corp. v. Lewis (2018) 138 S.Ct. 1612; Stolt-Nielsen S.A. v. AnimalFeeds Int’l Corp. (2010) 559 U.S. 662, 686; Kinecta Alternative Financial Solutions, Inc. v. Superior Court (2012) 205 Cal.App.4th 506, 510-511. Both the FAA and California law provide for a stay of proceedings pending the outcome of arbitration. 9 U.S.C. § 3; Code Civ. Proc., § 1281.4. Defendants to give notice.
107	Kornievsky vs. Smith Linden & Basso, LLP 2013-00635667	1. Motion for Discovery Sanctions (ROA 2359) 2. Motion to Compel Production (ROA 2363) Defendants Smith Linden & Basso, LLP; Allen L. Basso; and Allen A. Basso (“Basso Defendants”)’s Motion to Compel Plaintiffs Further Responses to Requests for Production of Documents, Set One is GRANTED IN PART and DENIED IN PART. The parties previously participated in an Informal Discovery Conference (IDC) before this Court on 3/27/2026. After the IDC, the Court issued the following minute order, in relevant part: The Court reviewed the parties joint IDC statement and met with the parties. The instant discovery dispute involves Plaintiffs’ RFPs and Defendants’ (Allen Basso and SLB) RFPs, ROGs and RFAs. The Court explained its view that the discovery at issue was permissible and reasonably calculated to lead to admissible

evidence. The Court also regarded the objections tendered as boilerplate such that both sides should supplement existing responses. The parties agreed such that (1) Defendants will complete their supplemental production of documents by April 3rd; and (2) Plaintiffs will provide supplemental responses by April 6th. To the extent either side is withholding documents due to objections or privilege, a “privilege log” will be delivered along with the supplemental responses.

(ROA #2275.)

On 4/6/2026, Plaintiffs served supplemental responses to the RFPs, which the Basso Defendants contend are still deficient. The Basso Defendants also contend that Plaintiffs never produced any additional documents or a privilege log.

After attempting to meet and confer with Plaintiffs in May 2026, on 6/25/2026, the Basso Defendants ultimately filed the instant motion to compel further responses, documents, and a privilege log, and to seek monetary sanctions against Plaintiffs and their counsel. (ROA #2363, Mot.)

On 9/11/2026, Plaintiffs filed an opposition. (ROA #2437 [Opp].) Although Plaintiffs point out various technical deficiencies with the Basso Defendants’ motion (e.g., failure to file a separate statement that complies with CRC 3.1345), Plaintiffs essentially concede that they did not produce any documents (other than 4 pages) after the 3/27/2026 IDC. Instead, Plaintiffs rely on their previous document production of 13,688 pages in January 2014 in connection with the parties’ arbitration, which production Plaintiffs contend includes responsive documents to the instant RFPs. But Plaintiffs also essentially admit that they did not comply with Code of Civil Procedure (CCP) section 2031.280, subdivision (a), which requires the responding party to “identif[y] the specific request number to which the documents respond.” (See, e.g., Opp. at p. 4 [conceding that “Basso Defendants may dispute whether prior productions were sufficiently tied to particular requests, or whether additional documents should have been identified or produced,” and that Plaintiffs’ responses to the instant RFPs “could have been phrased more precisely to reflect the prior production”].) A failure to correlate demands with produced documents may be cured, for example, by providing a “table that list[s] by Bates number which documents applied to which requests.” (*Pollock v. Super. Ct.* (2023) 93 Cal.App.5th 1348, 1359.)

As an initial matter, the Court **ADMONISHES** the Basso Defendants’ counsel for failure to file a compliant separate statement with their initial moving papers. While the Basso Defendants sufficiently cured this defect with their supplemental separate statement filed concurrently with their reply, neither Plaintiffs nor the Court should have to wait until 5 days before the hearing to receive a compliant separate statement, which impedes the ability to respond to the

		motion. Counsel for the Basso Defendants are reminded to comply with all applicable rules and procedures in the future. For RFP Nos. 1, 3–10, 14–46, 48–51, 53–55, 57–62, and 68–89—which Plaintiffs’ 4/6/2026 further responses already state that Plaintiffs “will produce” responsive documents—the Court GRANTS the motion. (CCP § 2031.320, subd. (a).) The Court ORDERS Plaintiffs to produce all responsive documents within 21 days of notice of this ruling. To the extent Plaintiffs contend that they have already produced responsive documents, Plaintiffs are ORDERED to provide the Basso Defendants with a document, spreadsheet, or chart identifying which specific produced documents correspond to which specific requests for production in compliance with CCP section 2031.280 within 21 days of notice of this ruling. The Court notes that the Basso Defendants have withdrawn the instant motion as to RFP Nos. 47, 52, and 56. (ROA #2454 [Reply], p. 6.) For the remaining RFPs at issue in this motion—i.e., RFP Nos. 2, 11–13, and 63–67, the Court GRANTS IN PART and DENIES IN PART the motion. When responding to requests for production, the responding party must respond separately to each item or category by (1) a statement that the party will comply; (2) a representation that the party lacks the ability to comply; or (3) an objection. (CCP § 2031.210, subd. (a).) If the response is an inability to comply, the responding party “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (CCP § 2031.230.) The Court finds that Plaintiffs’ responses substantially comply with CCP section 2031.230. Plaintiffs’ responses state that they are “unable to comply with this request as Responding Party does not have responsive documents within Responding Party’s possession, custody or control.” For some responses, Plaintiffs further state that they do “not believe Responding Party ever had responsive documents within Responding Party’s possession, custody or control.” This is sufficient to comply with the Code. Therefore, the Court DENIES the motion to compel further responses as to this portion of Plaintiffs’ responses to the RFPs. The only portion of these responses that does not comply with the Code is Plaintiffs’ failure to provide the address of the person or
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		organization known or believed by Plaintiffs to have possession, custody, or control of the documents. Therefore, the Court GRANTS the motion to the extent the responses are missing addresses and ORDERS Plaintiffs to serve verified, Code-compliant responses including addresses within 7 days of notice of this ruling. The Basso Defendants' initial moving papers also contended that Plaintiffs did not produce any privilege log after the 3/27/2026 IDC. In opposition, Plaintiffs contend that they produced the privilege log on 5/6/2026. (Opp. at p. 5.) In reply, the Basso Defendants contend that they only learned of the 5/6/2026 production when they read the opposition. (ROA #2454 [Reply], p. 2.) Upon further investigation, they noticed that Plaintiffs' service list omitted attorneys and staff at Mahaffey Law Group whom the Basso Defendants had specifically and repeatedly asked to be served; instead, the service list listed only Douglas L. Mahaffey, Esq.; Airene Williamson, Esq., an attorney who has not worked at the firm in over a year; and Thomas H. Cadden, Esq. of Cadden Fuller, LLP, an attorney Plaintiffs' own counsel had, by that date, acknowledged in writing is deceased. (<i>Id.</i> at pp. 2-3.) As Plaintiffs have already produced a privilege log and the Basso Defendants' reply do not identify any deficiencies with that log, the Court DENIES AS MOOT the motion to compel Plaintiffs' production of a privilege log. However, the Court also ADMONISHES Plaintiffs' counsel for failing to serve the correct attorneys and staff at the Basso Defendants' repeated request. Plaintiffs' counsel is reminded to update their service list accordingly. The Court further ADMONISHES Plaintiff's counsel for failure to respond to the Basso Defendants' 5/19 and 5/20/2026 follow-up meet and confer letters, which could have resolved this privilege log issue without the Court's involvement. Sanctions in the amount of \$8,150.00 are GRANTED in favor of the Basso Defendants and against Plaintiffs George and Carol Kornievsky and their counsel, jointly and severally, payable to the Basso Defendants' counsel within 30 days of notice. (CCP § 2031.310, subd. (h); see also CCP § 2023.030, subd. (a).) The Basso Defendants shall give notice of all of the above.
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108	Orange County Transportation Authority vs. M. Westland, LLC, a Delaware limited liability company 2018-00994118	1. Motion for Ruling on Legal Issue no.1 (ROA 508) 2. Motion for Ruling on Legal Issue no.2 (ROA 499) 3. Motion to Decide Evidentiary & Legal Issues (ROA 504) ISSUE #1 (Cross-Motions re 1960 ROW/Drainage Obligations) The parties have filed competing motions under Code of Civil Procedure (CCP) section 1260.040 asking the Court to address overlapping legal issues affecting compensation. Both motions are CONTINUED to October 29, 2026, at 2:00 p.m. in Department CX102 to allow for limited supplemental briefing, as explained and described below. The two motions are: 1. Plaintiff Orange County Transportation Authority's ("OCTA") Motion for Ruling on Legal Issue Affecting Compensation Under Code of Civil Procedure Section 1260.040 (No. 1) (ROA #508); and 2. Defendants (1) Dorothy Sublett-Miller and Walter J. Miller, Successor Trustees of the Miller Family Trust, originally dated October 12, 1979, Amended and Restated February 05, 2004, for the estate of Willis L. Miller, deceased, as to an undivided ½ interest; (2) Dorothy Sublett-Miller and Walter J. Miller, Successor Trustees of the Miller Family Trust, originally dated October 12, 1979, Amended and Restated February 05, 2004, for the estate of Dorothy M. Miller, deceased, as to an undivided ½ interest; and (3) Land Partners, LLC, a California limited liability company formerly known as Land Partners Co., Ltd.'s (collectively, "Miller Defendants") Motion to Decide Evidentiary and Legal Issues Affecting Compensation Pursuant to C.C.P. § 1260.040 (ROA #504). Plaintiff OCTA moves the Court to issue rulings pursuant to Code of Civil Procedure section 1260.040 on the following two issues: 1. Whether the term "accept," as used in Paragraph 12 of the circa 1960 Right of Way Contract – State Highway ("1960 Agreement"), requires only that Caltrans/OCTA provide drainage capacity sufficient to accommodate the discharge flows and discharge locations identified in the Voorheis, Trindle & Nelson study that formed the basis of the 1960 Agreement; and 2. Whether the term "accept," as used in Paragraph 12 of the circa 1960 Agreement, imposes any obligation on Caltrans/OCTA to design, construct, or maintain drainage facilities capable of accommodating runoff associated with a 100-year storm event without flooding, ponding, backup, or overflow onto the Miller or Westland Properties.
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